

6.	25CV3301	ROBERT L. RAE ET AL VS. MARIA J. DUGGAN ET AL
MOTION TO COMPEL FURTHER RESPONSES AND REQUEST FOR SANCTIONS		

Plaintiff filed this motion to compel further discovery responses and request for sanctions on April 16, 2026. Code compliant interrogatory responses are governed by the following statutes:

California Code, Code of Civil Procedure - CCP § 2030.220

- (a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.
- (b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible.
- (c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.

California Code, Code of Civil Procedure - CCP § 2030.240

- (a) If only a part of an interrogatory is objectionable, the remainder of the interrogatory shall be answered.
- (b) If an objection is made to an interrogatory or to a part of an interrogatory, the specific ground for the objection shall be set forth clearly in the response. If an objection is based on a claim of privilege, the particular privilege invoked shall be clearly stated. If an objection is based on a claim that the information sought is protected work product under Chapter 4 (commencing with Section 2018.010), that claim shall be expressly asserted.

Plaintiff maintains the answers provided were inadequate. California Code, Code of Civil Procedure § 2030.300 provides:

- (a) On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:
 - (1) An answer to a particular interrogatory is evasive or incomplete.
 - (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.

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(3) An objection to an interrogatory is without merit or too general.

(b)(1) A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.

(2) In lieu of a separate statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.

(c) Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories.

(d) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(e) If a party then fails to obey an order compelling further response to interrogatories, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of, or in addition to, that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010).

In addition to sanctions for the discovery responses Plaintiff appears to ask the court to sanction the Defendant for other conduct relating to service in the small claims case and other issues. The Plaintiff provides no basis or code section on which the request is made. The court finds this issue is not properly before the court as it arises out of the small claims case and Plaintiff has not filed a proper motion stating a code section any law on which such a request would be based.

The court finds that each of the answers complained about in the motion is a code compliant response. Plaintiff conflates their position the answers are untruthful, with the position they are in adequate responses. The issue of the truthfulness of the answers is not an issue the court can resolve by virtue of directing a different answer via a motion to compel. Even if it is true, for example, Defendant has documents she denies having, or names of witnesses she denies having, her answers are code compliant in that she denies those things exist. If she were to produce a witness or document she denied she had knowledge or possession of later, she would be required to provide an explanation to the trier of fact, and the court may not allow such evidence at all or even if it is allowed, the trier of fact could weigh

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whether to discredit or ignore her evidence due to deceit or misrepresentation. However, answers which are complete and fully answer the question remain code compliant even if they are false and/or knowingly false. The motion to compel further responses and request for sanctions is denied.

TENTATIVE RULING #6: THE MOTION TO COMPEL IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.